BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, NASHIK

Consumer Complaint No. 87 of 2025
(Fictional sample case for demonstration)

Smt. Priya Kulkarni, resident of Gangapur Road, Nashik ... Complainant
versus
1. Zenith Electronics, College Road, Nashik (Retailer) ... Opposite Party No. 1
2. Novaphone India Pvt. Ltd., Gurugram (Manufacturer) ... Opposite Party No. 2

COMPLAINT UNDER SECTION 35 OF THE CONSUMER PROTECTION ACT, 2019

1. On 02.03.2025 the Complainant bought a Novaphone X12 smartphone from Opposite Party No. 1 for Rs. 62,999 (Invoice No. ZE/2025/0412). The phone came with a one-year manufacturer's warranty.

2. From May 2025 the phone began overheating and the display stopped working. The Complainant took the phone to the authorised service centre of Opposite Party No. 2 on 12.05.2025, 30.05.2025 and 21.06.2025. Each time the phone was kept for 7 to 10 days and returned with the same defect.

3. On the third visit the service centre refused warranty repair, stating "liquid damage - warranty void". No inspection report or photograph was given to the Complainant. The Complainant states that the phone was never exposed to water, and has produced photographs showing the liquid damage indicator (LDI) inside the SIM tray is white, that is, not triggered.

4. The Complainant emailed Opposite Party No. 2 on 25.06.2025 and 02.07.2025 but received no reply. A legal notice dated 10.07.2025 was also not answered.

5. The Complainant says the phone has a manufacturing defect, and that refusing warranty service without any test report is a deficiency in service and an unfair trade practice.

RELIEF SOUGHT

(a) Refund of Rs. 62,999 with interest at 9% per annum; (b) Rs. 50,000 as compensation for mental agony and harassment; (c) Rs. 10,000 as litigation costs.

REPLY OF OPPOSITE PARTY No. 1 (Retailer)
6. Opposite Party No. 1 states that it is only a seller, sold a sealed product, and that any warranty claim lies against the manufacturer.

REPLY OF OPPOSITE PARTY No. 2 (Manufacturer)
7. Opposite Party No. 2 states that its engineers found corrosion on the motherboard, which shows liquid damage, and that the warranty terms exclude liquid damage. It has filed a one-page job sheet but no photographs or lab report of the corrosion.

The complaint is filed on 05.08.2025, within two years of the cause of action. The value of the claim is within the pecuniary jurisdiction of this Commission.